

25VECV03461 25VECV03461

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25VECV03461 ROSS V FCA

[TENTATIVE] ORDER: Plaintiff Daniel Ross's Motion to Compel

Initial Disclosures is GRANTED.

Plaintiff Daniel Ross's request for monetary sanctions is GRANTED in the amount of \$2,500.00 against Defendant and Counsel, jointly and severally.

Introduction

Plaintiff

Daniel Ross (Plaintiff) moved to compel Defendant FCA US, LLC (Defendant) to produce initial disclosures under Code of Civil Procedure section 871.26 subdivisions (h)(6), (h)(7), (h)(8), (h)(9), (h)(10), (h)(12), and (h)(13).

Plaintiff further requests monetary sanctions in the amount of \$2,500.00 against Defendant and its counsel of record.

Discussion

Plaintiff

argues Defendant's production of documents on October 17, 2025, was materially incomplete and unverified. (Mot., p. 5.)

First,

Code of Civil Procedure section 871.26 does not include a verification requirement. Plaintiff points to the verification requirement set out in section 2016.090, which provides for certain initial disclosures required in all civil actions. (Code Civ. Proc., sec. 2016.090, subd. (a)(1).) It

further states that “disclosures under this section shall be verified either in a written declaration by the party or the party’s authorized representative, or signed by the party’s counsel.” (Code Civ. Proc., sec. 2016.090, subd. (a)(5).)

This requirement is limited to section 2016.090 by subdivision (a)(5).

Thus, the provision does not require verifications for other initial disclosures, such as those required under section 871.26. Plaintiff’s citation to the legislative history surrounding Assembly Bill 1755, the legislation which produced the Song-Beverly initial disclosure regime, is inapposite. Even if such sources constituted binding authority, the specific report to which Plaintiff refers does not even discuss a verification requirement. Thus, this argument is without merit.

Next, Defendant argues Plaintiff’s motion should be denied as Defendant has provided the required initial disclosures pursuant to Code of Civil Procedure section 871.26 subdivision (h). (Opp., p. 3.) Subdivision (h)(6) requires motor vehicle information reports for the subject vehicle. Subdivision (h)(7) requires production of the warranty transaction history for the subject vehicle. Subdivision (h)(8) requires production of required field actions applicable to the subject vehicle. Subdivision (h)(9) requires production of published technical service bulletins for vehicles of the same year, make, and model of the subject vehicle reasonably related to its nonconformities. Defendant has provided these initial disclosures. (Tremonti Decl., para. 2.)

On October 16, 2025, Defendant served its initial disclosure production, which included warranty claims records, sales brochures, vehicle information detail reports, glove box documents, the Monroney label, and applicable Technical Service Bulletins. (Tremonti Decl., para. 2.) Plaintiff argues Defendant must separately run and produce VIN-specific search results from a list of internal systems on the theory that those systems will return the complete, unfiltered universe of records for the Subject Vehicle in that system. (Mot., p. 7-10.) Section 871.26 subdivision (h) requires production of defined categories of documents, not production by any particular method or system. Because Defendant has identified specific documents responsive to each category, and Plaintiff has not shown those documents are incomplete or that responsive information exists in the named systems and nowhere in what was produced, Defendant has satisfied subdivisions (h)(6) through (h)(9).

Subdivision (h)(12) requires production of warranty policies and procedure manuals. Subdivision (h)(13) requires production of service manuals for the

subject vehicle. Defendant has provided these initial disclosures subject to a protective order. (Tremonti Decl., paras. 3, 6.)

Subdivision (h)(10) requires production of published information service bulletins for vehicles of the same year, make, and model of the subject vehicle reasonably related to its nonconformities. Defendant has not provided these disclosures; however, Defendant asserts it has not identified any information service bulletins applicable to the subject vehicle, despite a reasonable search. (Opp., para. 6.)

While Defendant's opposition states a reasonable search was conducted, Defendant's counsel's declaration does not state as much. Counsel merely declares "FAC has not identified any additional...Informational Service Bulletin...in its possession and reasonably related to the subject vehicle." (Tremonti Decl., para. 8.) Counsel has not declared under penalty of perjury that a reasonable search was conducted to locate informational service bulletins. The Court therefore finds Defendant has not shown sufficient good cause for failure to produce informational service bulletins under subdivision (h)(10).

Thus, Defendant has failed to provide all initial disclosures as required under Code of Civil Procedure section 871.26 subdivision (h), specifically Defendant has failed to provide initial disclosures under subdivision (h)(10).

Further, Plaintiff requests Defendant produce complete DealerConnect records, unverified complaint claims, and AutoPay claims, citing to *Robertson v. Fleetwood Travel Trailers of California, Inc.* (2006) 144 Cal.App.4th 785 (Robertson). Plaintiff's reliance on Robertson is misplaced. The Robertson court did not hold that "every TNF visit and every AutoPay flash/reprogram constitutes a repair attempt under the Song-Beverly Act," nor was the court specific as to what constitutes a repair attempt. (Mot., p. 11.) The Robertson court addressed whether a reasonable number of attempts for repair were made of a vehicle and held that only occasions providing an opportunity to repair the specific nonconformity count as a repair attempt. (Robertson, *supra*, 144 Cal.App.4th at p. 799.) Section 871.26 does not specifically require these disclosures. Defendant is therefore not required to produce DealerConnect records, unverified complaint claims, and AutoPay claims, as they go beyond the scope of section 871.26 subdivision (h).

Accordingly, Plaintiff's motion to compel initial disclosures pursuant to Code of Civil Procedure section 871.26 is GRANTED as to subdivision (h)(10).

Plaintiff requests monetary sanctions against Defendant and Counsel, jointly and severally, in the amount of \$2,500.00, pursuant to Code of Civil Procedure section 871.26 subdivision (j)(1). Given the Court's ruling, and Defendant's failure to show good cause for failing to provide informational service bulletins, sanctions are mandatory under section 871.26 subdivision (j)(1). Therefore, the Court imposes sanctions of \$2,500.00 against Defendant and Counsel, jointly and severally. Sanctions are to be paid by August 7, 2026 to the Client Trust Account of Plaintiff's counsel.

Finally, Defendant requests the Warranty Administration Manual, attached as Exhibit 1 to Plaintiff's counsel's declaration be withdrawn from public record until it is properly filed under seal in accordance with the protective order, as it is a confidential FCA document. (Opp., p. 7.) The document attached was not produced in this litigation. Defendant needs to file a separate noticed motion for this in order for the Court to make express findings to justify the sealing.

IT IS SO ORDERED, CLERK TO GIVE NOTICE.